

IN THE CIRCUIT COURT, THIRD
JUDICIAL CIRCUIT, IN AND FOR
COLUMBIA COUNTY, FLORIDA

CASE NO: *23-51-CA*

HELEN DIANE MATZ,

Plaintiff,

vs.

**EARLONDEZ DONTA BOND and
MCCORMICK TRUCKING, INC.,**

Defendants.

COMPLAINT

COMES NOW the Plaintiff, **HELEN DIANE MATZ**, by and through the undersigned counsel, and sues Defendants, **EARLONDEZ DONTA BOND and MCCORMICK TRUCKING, INC.**, and alleges:

1. This is an action for damages that exceeds the sum of FIFTY THOUSAND DOLLARS (\$50,000.00), exclusive of costs, interest and attorneys' fees.
2. At all times material to this action, Plaintiff, **HELEN DIANE MATZ**, was a natural person residing in Green Cove Springs, Clay County, Florida.
3. At all times material to this action, Defendant, **EARLONDEZ DONTA BOND**, was a natural person residing in Macon, Bibb County, Georgia.
4. At all times material to this action, Defendant, **MCCORMICK TRUCKING, INC.**, was a Domestic For-Profit Corporation authorized to do business and doing business in the State of Florida.

5. On or about March 14, 2022, Plaintiff, **HELEN DIANE MATZ**, was operating a motor vehicle traveling westbound on I-10 in the right lane in Columbia County, Florida.

6. At that time and place, Defendant, **EARLONDEZ DONTA BOND**, was operating a tractor-trailer, owned by Defendant, **MCCORMICK TRUCKING, INC.**, also traveling westbound on I-10 in the right lane directly behind Plaintiff, **HELEN DIANE MATZ**.

7. At that time and place, Defendant, **EARLONDEZ DONTA BOND**, negligently operated and/or maintained the tractor-trailer so that he caused a collision with Plaintiff's motor vehicle, thereby causing her to sustain serious injuries.

COUNT I
NEGLIGENCE CLAIM AGAINST EARLONDEZ DONTA BOND

8. Plaintiff, **HELEN DIANE MATZ**, re-alleges and incorporates by reference each and every allegation contained in Paragraphs 1 through 7 above, and further alleges:

9. As a direct and proximate cause of Defendant, **EARLONDEZ DONTA BOND'S** negligence, Plaintiff, **HELEN DIANE MATZ**, suffered or incurred significant and permanent loss of an important bodily function and/or permanent and significant scarring; permanent injury within a reasonable degree of medical probability other than scarring or disfigurement; aggravation or activation of an existing disease or physical defect; pain, suffering, disability, physical impairment, mental anguish, inconvenience, and a loss of capacity for the enjoyment of life; expenses of medical care and treatment in the past and in the future; and loss of wages and/or loss of earning capacity in the future.

10. All losses are continuing and/or permanent.

11. Plaintiff will suffer or incur the injuries, expenses and impairment in the future.

COUNT II
NEGLIGENCE CLAIM AGAINST MCCORMICK TRUCKING, INC.

12. Plaintiff, **HELEN DIANE MATZ**, re-alleges and incorporates by reference each and every allegation contained in Paragraphs 1 through 11 above, and further alleges:

13. At that time and place, Defendant, **EARLONDEZ DONTA BOND**, was operating the tractor-trailer during the course and scope of his employment with Defendant, **MCCORMICK TRUCKING, INC.**

14. At that time and place, Defendant, **EARLONDEZ DONTA BOND**, was operating and driving the tractor-trailer with the permission and consent of its owner, Defendant, **MCCORMICK TRUCKING, INC.**

15. At all relevant times, Defendant, **EARLONDEZ DONTA BOND**, was the employee, agent, servant, and/or statutory employee for Defendant, **MCCORMICK TRUCKING, INC.**, operating for the benefit of, in furtherance of, the interests of and/or within the course and scope of his employment with Defendant, **MCCORMICK TRUCKING, INC.** Accordingly, Defendant, **MCCORMICK TRUCKING, INC.**, is vicariously liable for the acts of Defendant, **EARLONDEZ DONTA BOND**. Regardless of the employment or agency relationship, Defendant, **MCCORMICK TRUCKING, INC.**, is an interstate motor carrier responsible for the acts of Defendant, **EARLONDEZ DONTA BOND**.

16. Defendant, **MCCORMICK TRUCKING, INC.**, is vicariously liable for the negligence of Defendant, **EARLONDEZ DONTA BOND**, pursuant to the Florida Dangerous Instrumentality Doctrine.

17. As a direct and proximate cause of Defendant, **MCCORMICK TRUCKING, INC.**'s negligence, Plaintiff, **HELEN DIANE MATZ**, suffered or incurred significant and permanent loss of an important bodily function and/or permanent and significant scarring; permanent injury within a reasonable degree of medical probability other than scarring or

disfigurement; aggravation or activation of an existing disease or physical defect; pain, suffering, disability, physical impairment, mental anguish, inconvenience, and a loss of capacity for the enjoyment of life; expenses of medical care and treatment in the past and in the future; and loss of wages and/or loss of earning capacity in the future.

18. All losses are continuing and/or permanent.

19. Plaintiff will suffer or incur the injuries, expenses and impairment in the future.

WHEREFORE, Plaintiff, **HELEN DIANE MATZ**, demands judgment for damages against Defendants, **EARLONDEZ DONTA BOND and MCCORMICK TRUCKING, INC.**, and other such relief deemed proper by the Court. Plaintiff also demands a jury trial on all issues so triable.

RESPECTFULLY submitted this 7th day of February, 2023.

MORGAN & MORGAN



JEFFREY J. HUMPHRIES, ESQUIRE

Florida Bar No.: 708631

501 Riverside Avenue, Suite 1200

Jacksonville, FL 32202

Primary email: JHumphries@forthepeople.com

Secondary emails: TMcfarland@forthepeople.com

Telephone: (904) 398-2722

Facsimile: (904) 366-7677

Attorney for Plaintiff